

		that remains to be decided in <i>Murchison</i> is whether “the consideration being received for the release of the class members’ claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the particular litigation.” (<i>Kullar v. Foot Locker Retail, Inc.</i> (2008) 168 Cal.App.4th 116, 129.) The underlying Labor Code disputes will not be decided by the Court. Nor will the courts in the other Included Actions be asked to rule on the propriety of the <i>Murchison</i> settlement. Shuster contends coordination is necessary because it is unlikely the Court will approve the <i>Murchison</i> settlement. His petition catalogues various reasons he believes the settlement is improper. (Shuster Memo. at pp. 12-16.) These arguments are substantive objections to the settlement, not grounds for the procedural device of coordination. If the Court grants preliminary approval of the <i>Murchison</i> settlement, Shuster is free to raise them in objections, just like any other class member. In her response, Martinez suggests coordination is proper because “a global settlement [would be] difficult to manage without coordination.” (Martinez Resp. at p. 7.) But coordination does not mean the Included Actions are automatically consolidated for all purposes, such that Legends must reach a single global settlement with all named plaintiffs in the Included Actions. Even if coordination were granted, there is still a signed settlement agreement in <i>Murchison</i> that might result in the partial or total resolution of the Included Actions, regardless of whether the other plaintiffs are parties to that agreement. The coordination proponents also point out that if approval of the <i>Murchison</i> settlement is denied, all of the other cases will present duplicative discovery and overlapping legal and factual questions. Again, this appears true enough. But from the Court’s review of the docket in <i>Murchison</i>, no opposition to preliminary approval has been filed. At least on the current record, the possibility that approval will be denied outright is speculative. For these reasons, the petition for coordination is denied. Shuster’s request for a stay pending coordination is moot.
11	Nguyen vs. Hands on Bicycles, Inc. 2023-01343626	Defendant's Motion to Seal Defendant Hands On Bicycles, Inc.’s motion to seal is GRANTED. A court may order a record to be filed under seal only if it expressly finds facts establishing: 1. There exists an overriding interest that overcomes the right of public access to the record; 2. The overriding interest supports sealing the record; 3. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. The proposed sealing is narrowly tailored; and 5. No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).)

		At issue is the declaration of Defendant’s owner, Dave Hanson. The declaration was filed in response to the Court’s questions about how Defendant’s finances affected the settlement value. The general state of Defendant’s finances is known insofar as the public record reflects that the settlement was driven in large part by those finances. However, the material to be sealed includes specific financial information from profit and loss statements and the like. The Court finds Hanson’s declaration contains details of Defendant’s finances that are absent from the public record. The Court further finds these details implicate Defendant’s right to privacy in its financial affairs in a manner sufficient to support sealing the record. Should the record not be sealed, that overriding interest would be prejudiced, as the public would have access to detailed information about Defendant’s financial condition, in contrast to the general information already in the record. The sealing sought by Defendants is narrowly tailored. No means other than sealing will permit this private financial information to remain private. The motion is therefore granted.
12	Muhlhauser Steel, Inc. vs. 17422 Derian Irvine Apartments LLC 2025-01515505	Defendant’s Demurrer to Amended Complaint VACATED
13	Southern California Pizza Wage and Hour Cases JCCP 4725	Plaintiff's Motion for Leave to File Amended Complaint Defendant's Motion to Dismiss Defendant Southern California Pizza Company’s motion to dismiss the claims of Plaintiffs Kevin Deanda, Uriel Hernandez, and Carolina Huerta (through her successors-in-interest) GRANTED. Defendant’s unopposed request for judicial notice (ROA 1634) is GRANTED. Given this ruling, Huerta’s motion for leave to file a third amended complaint is DENIED. <u>GROUND</u>S FOR RULING I. <u>Brief Background</u> After nearly 14 years of litigation in this coordinated and consolidated proceeding, Plaintiffs’ consolidated claims remain. Following a series of class certification rulings, dispositive motion rulings, and trips to the Court of Appeal, most other named plaintiffs settled their claims on an individual basis. (Rene Najarro did not settle. The Court previously granted Defendant’s motion to dismiss Najarro’s claims. ROA 1611) As discussed in more detail below, Plaintiffs reached settlements in principle with Defendant, but the parties never executed formal settlement agreements. Defendant now moves to dismiss Plaintiffs’ claims for failure to bring them to trial within the time allowed by statute. II. <u>Discussion</u>